BUMUSKI GRIEVANCE POLICY

Policy owner	Human Resource Department
Prepared by	S.N Wang'ombe (Mrs.)
Date Prepared	25th July 2025, Reviewed, June 2026
Approval	

1. Purpose

This policy establishes the process for raising, assessing, investigating, resolving, appealing and closing staff grievances at BUMUSK. It is intended to provide a clear, fair and documented process through which staff concerns can be heard and addressed.

2. Scope

This policy applies to staff of BUMUSK who wish to raise a work-related grievance. It sets out the responsibilities of the staff member, the immediate supervisor, the Head of Section (HOS), the Head of Institution / Head of Centre (HOC), Human Resources (HR), management, investigation panel members and independent reviewers, as applicable.

3. Guiding Principles

a) Confidentiality: Grievances and related records must be handled confidentially and shared only with those who need the information to address the matter.
b) Impartiality: Grievances must be assessed objectively, and investigations should be fair and unbiased.
c) Protection from retaliation: Staff should be assured of protection from retaliation for raising a grievance in good faith.
d) Documentation: Complaints, responses, investigation records, decisions and appeals must be documented.
e) Fair hearing: The affected staff member must be given an opportunity to be heard, including the opportunity to bring a representative to the resolution meeting.
f) Timely handling: Each stage should be completed within the timelines set out in this policy, where practicable.

4. Grievance Procedure

4.1 Raising a grievance

A staff member who has a grievance should first approach their immediate supervisor and attempt to resolve the matter directly. If the matter remains unresolved, the staff member should submit a written complaint to the Head of Institution / HOC. Where appropriate under the escalation route, the complaint may be referred to management.

a) Responsible parties: Concerned staff member; immediate supervisor; HOS, as applicable
b) Records: Written complaint.
c) Timeline: Immediately.
d) Risks and mitigation: Delayed reporting due to fear of retaliation may be mitigated by assuring confidentiality and protection from retaliation, encouraging written submissions and training employees on available grievance channels.

4.2 Acknowledgement

The receiving HOS or HOC should acknowledge the written complaint and provide a written response on the complaint or next steps.

a) Responsible parties: HOS / HOC.
b) Records: Written complaint and written response.
c) Timeline: Within 2 days.

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d) Risks and mitigation: Delayed or ignored acknowledgement and loss of trust should be addressed by responding to the complaint within the stated timeline and maintaining an open-door policy

4.3 Initial assessment

The HOS / HOC should conduct an initial, objective assessment of the complaint to determine the appropriate next steps. Valid claims should not be dismissed prematurely.

a) Responsible parties: HOS / HOC.
b) Records: Written complaint and written response.
c) Timeline: Within 3 days after acknowledgement.
d) Risks and mitigation: Bias or incomplete assessment should be mitigated by maintaining impartiality and objectivity when considering the claim

4.4 Formal investigation, including interviews.

Where a formal investigation is required, a panel led by the HOC should review the matter, conduct relevant interviews and record the information gathered. Neutral parties, such as board members, should be involved where appropriate.

a) Responsible parties: Panel members led by the HOC.
b) Records: Panel meeting notes and incident forms.
c) Timeline: Within 7 days after the grievance is raised.
d) Risks and mitigation: Unfair or biased investigation and breaches of confidentiality should be mitigated by involving neutral parties where appropriate and observing strict confidentiality.

4.5 Resolution meeting

Following the investigation, a resolution meeting should be held with the affected staff member and relevant panel members. The staff member should be allowed to bring a representative. Neutral mediators, such as board members, may be used in extreme cases.

a) Responsible parties: Affected staff member and panel members led by the HOC.
b) Records: Panel meeting notes and incident forms.
c) Timeline: Within 3 days after the investigation.
d) Risks and mitigation: Intimidation, power imbalance and escalation of conflict should be mitigated by allowing representation and using neutral mediation where appropriate.

4.6 Decision and action

The HOC / HR should document the decision, the action to be taken and the applicable timelines, and communicate the decision to the staff member in writing. An appeal may be made in accordance with Section 4.7.

a) Responsible parties: HOC / HR.
b) Records: Panel meeting notes, incident forms and a letter containing the decision.
c) Timeline: Within 2 days after the investigation.
d) Risks and mitigation: Lack of follow-through and dissatisfaction with the outcome should be addressed by documenting decisions and timelines and providing an appeal process where applicable.

4.7 Appeal process

A staff member who is dissatisfied with the decision may submit a written appeal. Appeals should be reviewed by independent reviewers, such as board members, to reduce conflicts of interest.

i. The employee should first approach their immediate supervisor; if unresolved,
ii. The matter should be submitted in writing to the Head of Institution. If still unresolved,
iii. The employee should submit it in writing to management.

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iv. Management should hear the aggrieved staff member and communicate its decision in writing.

NOTE: The source procedure states that management's decision is final.

a) Responsible parties: Individual staff member and independent reviewers.
b) Records: Original decision letter and letter of appeal.
c) Timeline: Within 7 days after receipt of the decision.
d) Risks and mitigation: Lack of an appeal mechanism and conflicts of interest should be mitigated by defining clear, fair appeal steps and using independent reviewers

4.8 Follow-up and closure

After the grievance process is concluded, the HOC and HR should follow up with the staff member to confirm closure and check whether concerns have re-emerged. Regular check-ins and an anonymous feedback mechanism should be used as appropriate.

a) Responsible parties: Individual staff member, HOC and HR.
b) Records: Final letter from the appeal process, where applicable, and follow-up records.
c) Timeline: Monthly check-ins.
d) Risks and mitigation: Retaliation or recurrence of unresolved issues should be mitigated through regular check-ins by the HOC and HR and an anonymous feedback mechanism.

5. Confidentiality and Records

All written complaints, responses, meeting notes, incident forms, decision letters, appeal letters and follow-up records must be handled confidentially. Records should be maintained securely by the responsible office and made available only to authorised persons involved in handling the grievance.

6. Responsibilities

i. Staff member:
   a) Raise the grievance promptly, provide a written complaint where required, participate in the process and submit an appeal in writing within the stated timeline if dissatisfied.
   b) Immediate supervisor / HOS: Receive or help address the grievance at the appropriate initial stage, encourage appropriate reporting and acknowledge or respond to complaints as required.

ii. HOC:
   a) Lead or coordinate assessment, investigation and resolution; ensure impartiality and confidentiality; document and communicate decisions.

iii. HR:
   a) Support the process, maintain records, assist with decision communication and conduct follow-up with the HOC.
   b) Panel members / independent reviewers: Participate impartially, maintain confidentiality and, where appointed, review the grievance or appeal objectively.

iv. Management:
   a) Hear the aggrieved staff member where the matter is escalated to management and communicate the decision in writing.

7. Policy Approval and Review

This policy takes effect upon approval by the authorized approver. Any amendments should be approved through the organisation's applicable approval process.

Approval	
Signature	
Date	

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